

Plaintiff's Sole Cited Case Does Not Apply

The only case cited in Plaintiff's moving papers is inapposite. In *Shayan*, the Court of Appeal held that relief under section 473, based on an attorney's mistake, did not apply to a judgment entered after trial on the merits, and had not been a default, a default judgment, or a dismissal. (*Shayan v. Spine Care & Orthopedic Physicians* (2020) 44 Cal.App.5th 167, 169.)

Unlike the appellant in *Shayan*, who filed a timely complaint but sought discretionary relief after an adverse judgment after a trial on the merits, Plaintiff here filed an untimely complaint from the outset. Nothing in *Shayan* suggests that Code of Civil Procedure section 473(b) can revive an action that was jurisdictionally time-barred at its inception.

Conclusion

For the reasons analyzed above, **the Motion to for relief from the Court's order sustaining Defendant Alameda-Contra Costa Transit District's Demurrer without leave to amend is DENIED.**

8. 9:00 AM CASE NUMBER: C25-02141

CASE NAME: RASSOUL MALBOUBI VS. CITY OF RICHMOND

***HEARING ON MOTION IN RE: COMPEL FURTHER RESPONSES FOR REQUEST FOR PRODUCTION OF DOCUMENTS AND MONETARY SANCTIONS**

FILED BY: MALBOUBI, RASSOUL

TENTATIVE RULING:

Plaintiff Rassoul Malboubi ("Plaintiff") filed a Motion to Compel Further Responses on February 19, 2026 (the "Motion to Compel Further Responses"). The Motion to Compel Further Responses was set for hearing on May 4, 2026. The motion is opposed.

Background

Plaintiff seeks further responses to discovery requests propounded on defendant City of Richmond (the "City"), described as "Plaintiff's Amended and Streamlined Requests for Production of Documents (Set Three), served on January 5, 2026." See Motion to Compel Further Responses, p. 2.

As with another prior motion to compel, Plaintiff failed to file a Separate Statement pursuant to the requirements of Rule 3.1345 of the California Rules of Court ("CRC") with the moving papers.

Plaintiff belatedly filed a "SUPPLEMENTAL SEPARATE STATEMENT" in support of the Motion to Compel Further Responses on March 9, 2026 (the "Separate Statement").

Analysis

As noted above, Plaintiff failed to file a Separate Statement in support of the Motion to Compel Further Responses with the moving papers. Any motion involving the content of a discovery request or the responses to such a request must be accompanied by a separate statement, including a motion to compel further responses to interrogatories or a demand for inspection of documents. Rule 3.1345(a)(1)-(3); see Weil & Brown, *et al.*, *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2025) ("Rutter Civ. Pro.") § 8:602.5. CRC 3.1345 provides that "Any motion involving the content of a discovery request or the responses to such a request **must be accompanied by** a separate statement..." CRC 3.1345(a) (emphasis added).

Even if the Court were inclined to consider the belatedly filed Separate Statement, it fails to conform to the requirements of the CRC. There are very specific requirements for the formatting and content

of a Separate Statement. See CRC 3.1345(c) (“A separate statement is a separate document filed and served with the discovery motion that provides all the information necessary to understand each discovery request and all the responses to it that are at issue. **The separate statement must be full and complete so that no person is required to review any other document in order to determine the full request and the full response.**”) (emphasis added). Among other things, a proper Separate Statement must set forth the full text of both the request and response. *Id.* at (c)(1)-(2).

The belated Separate Statement fails to comply with the requirements of CRC 3.1345. Among other things, the proffered Separate Statement fails to set forth the full response verbatim. Rather, the moving party’s Separate Statement purports to summarize the nature and extent of the response.

The opposing party proffered the actual responses and it is readily apparent that the moving party’s Separate Statement does not recite the responses verbatim, as required by the CRC. See Declaration of Kevin D. Siegel filed April 21, 2026, ¶15 and **Exhibit C** thereto. For this reason alone, the motion is procedurally defective.

It is also apparent to the Court that the moving party’s meet and confer efforts were woefully inadequate. However, the Court need not address such matters further in light of the blatant procedural non-compliance.

Sanctions

The moving party persisted in prosecuting the Motion to Compel Further Responses without substantial justification based upon procedurally defective moving papers.

The Court finds that the moving party’s conduct constituted making a motion to compel discovery unsuccessfully and without substantial justification, pursuant to Code of Civil Procedure section 2023.010(h).

The Court finds that the foregoing conduct by the moving party constituted conduct that was a misuse of the discovery process within the meaning of Code of Civil Procedure section 2023.030 and that such conduct warrants the imposition of monetary sanctions (the “Monetary Sanctions”).

Plaintiff shall pay monetary sanctions to Defendant in the amount of **\$3,065.00** (the “Monetary Sanctions”). The Court finds that the Monetary Sanctions are reasonable expenses, including attorneys’ fees, incurred by Defendant as a result of the foregoing conduct by Plaintiff. In fixing said amount, the Court has considered all evidence in the record before the Court, including the declaration of the opposing party. The Court does not find any circumstances that make the imposition of such sanctions unjust.

Disposition

The Court further finds and orders as follows:

1. The Motion to Compel Further Responses is DENIED.
2. The Monetary Sanctions shall be paid by Plaintiff to Defendant within **thirty (30) calendar days** of notice of entry of this order.
3. The Court shall issue the order after hearing.

9. 9:00 AM CASE NUMBER: C25-02471

CASE NAME: KRANTI KAPRE VS. CLEAR RECON CORP

***HEARING ON MOTION IN RE: ORDER COMPELLING INDEPENDENT FORENSIC ACCOUNTING AND STAYING ENFORCEMENT PENDING REVIEW**

FILED BY:

TENTATIVE RULING:

Plaintiff Kranti Kapre ("Plaintiff") filed a Motion for Order Compelling Independent Forensic Accounting and Staying Enforcement Pending Review on December 15, 2025 (the "Motion"). The Motion was set for hearing on May 4, 2026.

Background

Defendant Clear Recon Corp ("Defendant") appeared in this action by way of a Demurrer filed February 17, 2026 and set for hearing on June 29, 2026.

No Proof of Service was filed with the moving papers. Nor does not appear that Defendant was served with the Motion after Defendant's appearance in the case.

Analysis

Plaintiff has failed to properly serve the Motion on the opposing party. For that reason alone, the Motion is procedurally defective.

Even if it had been properly served, no basis has been shown for the Court to order a "court-supervised forensic accounting." There is no cause of action pled in the operative complaint for an accounting nor any prayer for such relief in that pleading. No other authority has been articulated for the right to a "court-supervised forensic accounting" at this stage of the proceedings.

The other relief sought is unclear and no basis has been shown for such relief. While difficult to parse, the Motion also appears to reference seeking to amend the complaint. The Motion is procedurally defective to the extent it is intended to be some sort of request for leave to amend.

To the extent judicial notice was requested in connection with the Motion, it is DENIED.

Disposition

The Court finds and orders as follows:

1. The Motion is DENIED.
2. The Court shall issue the order after hearing.

10. 9:00 AM CASE NUMBER: C25-02705

CASE NAME: TRACY PITTS VS. CONTRA COSTA COUNTY

***HEARING ON MOTION IN RE: SANCTIONS AGAINST PLAINTIFF AND HER COUNSEL CCP 128.7**

FILED BY: CONTRA COSTA COUNTY

TENTATIVE RULING:

Defendant Contra Costa County ("Defendant") brings a motion for sanctions ("Motion") pursuant to Code of Civil Procedure section 128.7, against Plaintiff Tracy Pitts ("Pitts") and Plaintiff's counsel of record, Nicolis Peters ("Counsel" together with Pitts, "Plaintiff"), for the amount of \$5,250.